

Justification and Approval  
for Other than Full and Open Competition - FAR Part 6

1. Contracting Activity: Department of the Army  
US Army Corps of Engineers  
Fort Worth District  
Contracting Division  
Fort Worth, Texas 76102
2. Description of Action: This C-Type Contract will have the Architect-Engineer (AE) prepare a solicitation package from previous documents submitted under contract W9126G17D0007, TO W9126G20F0467, using the information provided in this and the following paragraphs.

The Architect-Engineer (AE) shall provide Design Oriented Construction Phase Services in support of an on-going Construction Award, W9126G22C4347 JBSA Camp Bullis Dining Facility. The AE is the Designer of Record on this Construction Project.

The AE will also provide the following services:

Design Oriented Construction Phase Services as follows:

1. Ten site visits;
  2. Full review of up to 40 construction submittals and shop drawing reviews.
  3. Ten variance reviews and differing site condition reviews; and
  4. 50 Requests for Information (RFIs) from the construction contractor, or Government Requests for Information (GRFI) (Contract W9126G22C4347).
  5. 50 Conference calls/meetings
3. Description of Services: The AE shall provide Solicitation and Contract Award documents in conjunction with expired TO Award W9126G20F0467, to include all activities listed in Paragraph 2.

Through the construction contract, the AE shall provide support around Design Oriented Construction Phase Services as described above for the following:

W9126G22C4347 JBSA Camp Bullis Dining Facility, San Antonio, Texas.

During construction, the AE shall answer all RFI's, maintain monthly RFI logs, provide monthly labor reports, conduct three site visits as needed, review up to 40 construction submittals and shop drawings, respond to 50 Requests for Information (RFIs) from the construction contractor, or Government Requests for Information (GRFI), and review up to ten variance reviews. The AE firm shall be responsible for all the requirements of their CPS Project Engineer to include transportation, workspace, computer support, communication, and per diem.

4. Authority: 10 United States Code 3204(c)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(A), Substantial duplication of cost to the Government that is not expected to be recovered through competition.
5. Reason for Authority Cited: Liability for design performed by the original AE firm is lost if another AE firm revises the original design. Accordingly, the original AE Firms is the only source capable of revising the original design. By awarding the follow-on contract to the original AE firm continuation of liability is maintained. If the follow-on contract is awarded to a different AE firm continuation of liability is broken and neither the new AE firm nor the original AE firm would be liability for any defects with the revised design. No other AE firm is legally able to revise the contract documents after they are sealed without re-designing the entire project. Additionally, a re-design at this stage would result in substantial duplication of costs valuing more than the original amount of [REDACTED], which does not account for inflationary costs since 2022. Re-competing this follow-on contract would be a substantially cost that outweighs the expected cost of [REDACTED] for using the original AE firm.

The Government's requirement for the original design was purchased through a preexisting Indefinite Delivery Contract (IDC) W9126G17D0007. Fair opportunity was given, and the original order, W9126G17D0007, TO W9126G20F0467 was awarded such that the most highly qualified firm was selected for the order. This action is considered an in-scope follow-on contract to the original contract. The intent of this contract is to allow the original DOR to solicit for advertisement and add CPS to the contract.

6. Efforts to Obtain Competition: There is currently no effort to obtain competition for this requirement. Since the original AE has liability for their plans and drawings, it is far too great an assumption of risk to allow another AE firm to revise the signed and sealed drawings.
7. Actions to Increase Competition: The previous Task Order was competed among a pool of contractors and AES Group, Inc., was selected as the most highly qualified. As such, there are no barriers to competition as none exist. In the case of revisions to signed and sealed contract documents, only the original AE may revise those documents to preserve the original AE's work product. Should another firm be selected to update the design to current standards, the original designer of record would not be liable for any design defects as the Solicitation package would no longer be their design. Similarly, another AE would also not be liable for design defects as the Solicitation package would not be solely that AE's design.



Approval

Based on the foregoing justification, I hereby approve the procurement of AE services in the amount of [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 United States Code 3204(c)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(A), Substantial duplication of cost to the Government that is not expected to be recovered through competition, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

BUCHANAN.ROBERT.  
EVERETT.

Robert E. Buchanan  
Contracting Officer